

December 20, 2018



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 7041
(FOURTEENTH REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain waste organometallic compound dispersions and hydrocarbon solvent in prescribed non-DOT specification cargo tanks with agitators. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.244(b) in that MC-331 type non-DOT specification cargo tanks with an agitator are authorized.
5. BASIS: This special permit is based on the application of Albemarle Corporation dated December 14, 2018, submitted in accordance with § 107.109 and additional information dated December 20, 2018.

Tracking Number: 2018124852

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6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/Division	Identification Number	Packing Group
Waste organometallic substance, liquid, water-reactive, flammable (Magnesium-aluminum alkyls/magnesium dispersions in hydrocarbon solvents)	4.3	UN3399	I
Waste organometallic substance, liquid, water-reactive, flammable (Sodium aluminum hydride/aluminum dispersions in hydrocarbon solvents)	4.3	UN3399	I
Waste organometallic substance, liquid, pyrophoric, water-reactive (containing not more than 30 weight percent triethylaluminum, triisobutylaluminum, tri-n-butylaluminum, tri-n-hexylaluminum, tri-n-octylaluminum, and/or mixtures thereof in hydrocarbon solvents)	4.2	UN3394	I
Waste organometallic substance, liquid, pyrophoric, water-reactive (containing not more than 30 weight percent methylaluminum sesquichloride, ethylaluminum sesquichloride, various ethylaluminum chlorides and/or mixtures thereof of hydrocarbon solvents)	4.2	UN3394	I

7. SAFETY CONTROL MEASURES:

a. PACKAGING: Prescribed packagings are insulated non-DOT specification 4,000 gallon capacity cargo tanks of the MC-331 type, except that the tanks are supported by cantilevers instead of a sub-frame and each tank is equipped with top mounted model 73S10 agitators. The tanks must

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comply with Albemarle Corporation's drawing number 4402101 and related drawings and specifications on file with the Office of Hazardous Materials Safety Approvals and Permits Division (OHMSAPD).

b. TESTING: Each cargo tank must be reinspected and retested as prescribed for DOT Specification MC-331 cargo tanks as specified in § 180.407(g)(1)(ix).

8. SPECIAL PROVISIONS:

a. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

b. Additional waste organometallic compound dispersion compositions must be submitted for authorization in writing to the OHMSAPD prior to their first shipment.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS:

a. A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.

b. Each cargo tank must be plainly marked on the right side near the front, in letters at least two inches high on a contrasting background, "DOT-SP 7041".

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

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Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when the special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) - "The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 Immediate notice of certain hazardous materials incidents, and 171.16 Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

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Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: Andrew Eckenrode